SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: W.P. (C) No. 217 of 2019 (YEAR: 2020)

CORAM: R.F. NARIMAN, ANIRUDDHA BOSE, V. RAMASUBRAMANIAN

Internet and Mobile Association of India
... Appellant(s) / Petitioner(s)
Versus
Reserve Bank of India
... Respondent(s)

Acts Referred:	Constitution of India, Banking Regulation Act, 1949
Sections:	Article 19(1)(g), Article 14

JUDICIAL HEADNOTE & SUMMARY

Set aside the RBI circular banning banks from providing services to virtual currency exchanges, ruling that the blanket ban failed the constitutional proportionality test under Article 19(1)(g).

RATIO DECIDENDI

The Court held that: Set aside the RBI circular banning banks from providing services to virtual currency exchanges, ruling that the blanket ban failed the constitutional proportionality test under Article 19(1)(g). It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Internet and Mobile Association of India v. Reserve Bank of India (W.P. (C) No. 217 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, Banking Regulation Act, 1949, particularly Article 19(1)(g), Article 14. Set aside the RBI circular banning banks from providing services to virtual currency exchanges, ruling that the blanket ban failed the constitutional proportionality test under Article 19(1)(g).

OPERATIVE ORDER

ORDER: Decided